



MEMORANDUM

TO: Governing Body, City of Cheyenne
FROM: Renee Smith, Economic Resource Administrator
DATE: DECEMBER 12, 2024
SUBJECT: CONTRACT MODIFICATION TO CONTRACT 7772 WY STATE OSLI – VAN BUREN STORM SEWER INTERCEPTOR PROJECT

In 2023, the City of Cheyenne received a \$1 million grant award from the State of Wyoming Office of State Lands and Investments Board for the Van Buren Storm and Sewer Interceptor Project. These funds were made available through the State's American Rescue Plan Act, State and Local Fiscal Recovery Funds program, Local Government ARPA grant.

The City was notified on December 10, 2024 of an additional award of \$421,212 for the project, which is being managed by the City Engineer's Department. The deadline for all ARPA funds to be obligated is December 31, 2024 and the grant agreement must be signed as soon as possible to meet the State's deadline.

Please let me know if you have any questions about this additional grant award. Thank you for your consideration.

Respectfully,

A handwritten signature in blue ink, appearing to read "Renee".

Renee Smith
rsmith@cheyennecity.org
(307)637-6285

ARPA GRANT LG-1223

AMENDMENT ONE TO THE ARPA GRANT AGREEMENT BETWEEN
THE STATE OF WYOMING,
OFFICE OF STATE LANDS AND INVESTMENTS
AND
CITY OF CHEYENNE

1. **Parties.** This Amendment is made and entered into by and between the State of Wyoming, Office of State Lands and Investments (OSLI), whose address is 122 West 25th Street, Cheyenne, WY 82002, and City of Cheyenne (Grantee), whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001.
2. **Purpose of Amendment.** This Amendment shall constitute the first amendment to the Reimbursement Agreement between the OSLI and the Grantee. The purpose of this Amendment is to increase the total award amount by four hundred twenty one thousand two hundred twelve dollars (\$421,212.00) for a total award of one million four hundred twenty one thousand two hundred twelve dollars (\$1,421,212.00).

The original Agreement, dated July 17, 2023, required OSLI to disburse State and Local Fiscal Recovery Funds pursuant to the American Recovery Plan Act (ARPA) and 2022 Wyo. Sess. Laws Ch. 50 § 2(c), FN 17, for a total Agreement amount of one million dollars (\$1,000,000.00).

3. **Term of the Amendment.** This Amendment shall commence on upon the date the last required signature is affixed hereto (Effective Date), and shall remain in full force and effect through the term of the Agreement, as amended, unless terminated at an earlier date pursuant to the provisions of the Agreement, or pursuant to federal or state statute, rule or regulation.
4. **Amendments.**
 - A. The second sentence of Section 4(A) of the original Agreement is hereby amended to read as follows:

“The total payment under this Agreement shall not exceed one million four hundred twenty one thousand two hundred twelve dollars (\$1,421,212.00).”
5. **Amended Responsibilities of the Grantee.** Responsibilities of the Grantee have not changed.
6. **Amended Responsibilities of the OSLI.** Responsibilities of the OSLI have not changed.

7. Special Provisions.

- A. Same Terms and Conditions.** With the exception of items explicitly delineated in this Amendment, all terms and conditions of the original Agreement, and any previous amendments, between the OSLI and the Grantee, including but not limited to sovereign immunity, shall remain unchanged and in full force and effect.
- B. Counterparts.** This Amendment may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Amendment. Delivery by the Grantee of an originally signed counterpart of this Amendment by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the OSLI.

8. General Provisions.

- A. Entirety of Agreement.** The original Agreement, consisting of eight (8) pages; Attachment A, consisting of ten (10) pages; and this Amendment One, consisting of three (3) pages, represent the entire and integrated agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Amendment.

The Effective Date of this Amendment is the date of the signature last affixed to this page.

OSLI:

State of Wyoming, Office of State Lands and Investments

Jason Crowder, Interim Director

Date

GRANTEE:

City of Cheyenne

Signature

Date

Printed Name and Title

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

for  #245341
Tyler M. Renner, Supervising Attorney General

12-09-24
Date

Contract #: 245341

Entry Date: 11/26/2024 6:02:42 PM

Department: Wyoming Office of State Lands & Investments

WYOMING ATTORNEY
GENERAL'S OFFICE

Agency Contact: Pounds, Kaitamaria

Phone: 307-777-7453

Other Agency Contact: 307-777-7331

DEC 09 2024

Madison Barber
APPROVED AS TO FORM

Client Comments: ARPA High Priority

Contractor/Vendor Name: City of Cheyenne

Contract Title: ARPA Local Government Grant
1223

Contract Type: Grant Agreement - State

Contract Amount: 421212.0000

Contract Effective Date:

Contract Expiration Date: 10/1/2026 12:00:00 AM

Status: Attorney Review Complete

RETURN VIA: Ink Signature - Pick-up

Assigned Attorney: Tyler Renner